

Section 111 deals with the liability of Railway Administration in respect of accidents at sea.

112. Power to make rules in respect of matters in this chapter :

(1) The Central Government may, by notification . make rules to carry out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power. Such rules may provide for all or any of the following matters, namely:

(a) the manner of packing of goods entrusted to a railway administration under Cl. (b) To sub-section (1) of Sec.98 ;

(b)The goods for the purposes of sub-section (3) of sec. 99; and

(c) the maximum amount payable by the railway administration for the loss, destruction, damage, deterioration or non-delivery of any consignment under sub-section (1) of Sec. 103.

COMMENT

Section 112 empowers the Central Government to make rules to carry out the purposes of Chapter XI. The matters in respect of which the rules shall be made by the Central Government are enumerated in sub-section (2)

CHAPTER XII

Accidents

113. Notice of railway accident :

(a) any accident attended with loss of any human life, or with grievous hurt, as defined in the Indian Penal Code (45 of 1860) , or with such serious injury to property as may be prescribed ; or

(b) any collision between trains of which one is a train carrying passengers ; or

(c) the derailment of any train carrying passengers, or of any part of such train; or

(d) any accident of a description usually attended with loss of human life or with such grievous hurt as aforesaid or with serious injury to property; or

(e) any accident, of any other description which the Central Government may notify in this behalf in the Official Gazette, occurs, or where there is no station master, the railway servant in charge of the section of the railway on which the accident occurs, the District Magistrate and Superintendent of Police, within whose jurisdiction the accident occurs, the officer in charge of the police station within the local limits of which the accident occurs and to such other Magistrate or police officer as may be appointed in this behalf by the Central Government.

(2) The railway administration within whose jurisdiction the accident occurs, as also the railway administration to whom the train involved in the accident belongs, shall without delay, give notice of the accident to the State Government and the Commissioner having jurisdiction over the place of the accident.

Comments

Section 113, sub-section (1) imposes an obligation on the station master or the railway servant in charge of the section where any railway accident takes place to give a notice of such accident to the District Magistrate Superintendent of Police, etc.,

Sub-section (2) imposes an obligation on the railway administration to give a notice of such accident to the State Government and the Commissioner.

114. Inquiry by Commissioner :

(1) On the receipt of a notice under Sec. 113 of the occurrence of an accident to a train carrying passengers resulting in loss of human life or grievous hurt causing total or partial disablement of permanent nature to a passenger or serious damage to railway property, the Commissioner shall, as soon as may be, notify the railway administration in whose jurisdiction the accident occurred of his intention to hold an inquiry into the causes that led to the accident and shall at the same time fix and communicate the date, time and place of inquiry;

Provided that it shall be open to the Commissioner to hold an inquiry into any other accident which, in his opinion, requires the holding of such an inquiry.

(2) If for any reason, the Commissioner is not able to hold an inquiry as soon as may be after the occurrence of the accident, he shall notify the railway administration accordingly.

Comments.

Section 114 empowers the Commissioner to hold inquiry into any railway accident resulting in the loss of human life or grievous hurt to a passenger or serious damage to railway property.